



County Council Meeting October 24th 2023

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=LuitDsAMRJo
Publication Date	2023-10-24T15:20:56Z
Target Category	delaware_county

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Delaware County Council Meeting Summary

Meeting Date: October 24, 2023

Body: Delaware County Council

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding Officer Jessica Piper called the regular monthly meeting of the Delaware County Council to order at [00:04:03](#).
- **Attendance:**
 - **Present:** Mr. Flanigan, Mr. Hughes, Mr. K, Mr. M (Mel), Mr. Webb, Mr. Swad, and Presiding Officer Ms. Piper.
 - **Absent:** None noted.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by Eugene K.
- **Approval of Agenda:** Approved unanimously by roll call vote following a motion by Dan and second by Eugene.

- **Approval of Minutes:** The September 26, 2023 County Council meeting minutes were approved by roll call vote following a motion by Eugene and second by Dan.
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4. Substantive Business & Board Action

- **00:05:48 Sheriff<U+2019>s Department Transfer (Line 129)**
 - **Sponsor / Presenter:** County Council / Department Representative.
 - **Deliberation Summary:** Transfer of \$10,557.98 within line items (moving funds to Deputy line) resulting in a net transfer of zero.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:06:26 Circuit Court Transfer (Fund 38)**
 - **Sponsor / Presenter:** Court Representative / Emily Anderson.
 - **Deliberation Summary:** Discussion regarding a transfer of \$15,489.32 into psychological testing lines. The court noted that mandatory psychological evaluations for criminal cases had depleted the line to zero, and two outstanding \$3,600 invoices needed payment.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:08:51 Treasurer<U+2019>s Office Transfer (Line 127)**
 - **Sponsor / Presenter:** Brad Hunt, Treasurer.
 - **Deliberation Summary:** Transfer of \$1,000 from printing to office supplies to cover special receipt paper and printer ink required for the fall tax collection period.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:10:19 Prosecutor<U+2019>s Office Transfer (Line 137)**
 - **Sponsor / Presenter:** Lisa Carter, Prosecutor's Office.
 - **Deliberation Summary:** Initial request to transfer \$24,695.27 into an office remodel line to set up space for a new deputy prosecutor, purchase a laptop/dock, furniture, and potentially copiers. Council members expressed skepticism regarding spending over \$24,000 without detailed contractor estimates for building a single wall and door.
 - **Action & Vote Disposition:** Amended to reduce the office remodel transfer to \$9,883.32 (leaving \$1,000 for office supplies and removing unitemized excess amounts until firm quotes are provided next month). The amended transfer was approved by roll call vote (Mr. K voted "No", motion passed 6-1).
- **00:29:43 Public Defender<U+2019>s Office Transfer (Line 139)**
 - **Sponsor / Presenter:** Shelley Harvey, Public Defender's Office.
 - **Deliberation Summary:** Transfer of \$110,000 into attorney fees and \$10,000 into contract attorney fees, offset by internal reallocations for a net transfer of zero. Harvey explained that contract attorney fees cover conflict cases and attorneys hitting their statutory case caps (\$100/hour rate set by the public defender commission).

- **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:31:26 Highway Department Transfer (Fund 1176)**
 - **Sponsor / Presenter:** Highway Department Representatives.
 - **Deliberation Summary:** Transfer involving part-time and overtime funds (\$30,000). Staff explained that overtime and part-time funds are necessary due to hot mix asphalt delivery schedules, emergency truck/mechanic repairs, and preparation for winter weather operations.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:34:54 County Bridge Transfer (Fund 1135)**
 - **Sponsor / Presenter:** County Bridge Department.
 - **Deliberation Summary:** Transfer of \$15,000 into overtime and welder lines (net zero) to cover operational demands and project overruns.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:35:50 Jail Transfer (Fund 1170)**
 - **Sponsor / Presenter:** Jail Administration / Nancy Marvin.
 - **Deliberation Summary:** Back-filling and reclassifying correctional officer positions (adjusting \$10,381.70, net zero).
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:36:30 Prosecutor Supplemental Transfer (Fund 1170)**
 - **Sponsor / Presenter:** Prosecutor's Office.
 - **Deliberation Summary:** Reallocation of \$1,833 for investigator lines (net zero).
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:37:02 Public Defender Supplemental Transfer**
 - **Sponsor / Presenter:** Public Defender's Office.
 - **Deliberation Summary:** Minor benefits adjustments (\$200 health, \$120 perf, \$80 FICA; net zero).
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:37:37 Additional Jail & Sheriff Transfers (Fund 145 / 129)**
 - **Sponsor / Presenter:** Nancy Marvin, Sheriff's Office.
 - **Deliberation Summary:** Multiple line-item corrections and back-filling adjustments for correctional officers, clothing allowances, and overtime/corporal promotions (net zero transfers).
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:41:47 Auditor Transfer (Line e104)**
 - **Sponsor / Presenter:** Auditor's Office.
 - **Deliberation Summary:** Payroll and tax sale deputy line adjustments (\$7,475.61; net zero).
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:42:30 Community Corrections DOC Grant Transfer (Fund 9320)**
 - **Sponsor / Presenter:** Community Corrections.

- **Deliberation Summary:** Reallocation of administrative assistant and financial manager lines (net zero).
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:43:21 Community Corrections Drug Project Income Transfer (Fund 501)**
 - **Sponsor / Presenter:** Community Corrections.
 - **Deliberation Summary:** Reallocations reflecting a work crew supervisor position left vacant mid-year that will not be refilled (\$24,920.6 moved to health insurance; net zero).
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:44:23 Public Defender<U+2019>s Office Legal Secretary Transfer (Line 139)**
 - **Sponsor / Presenter:** Public Defender's Office.
 - **Deliberation Summary:** Reallocation of \$2,550 for legal secretary lines (net zero).
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
- **00:45:00 Public Defender Additional Appropriations (County General Line 139)**
 - **Sponsor / Presenter:** Shelley Harvey, Public Defender.
 - **Deliberation Summary:** Request for additional appropriations totaling \$46,350 (\$7,850 for PERF due to a budget preparation error, \$3,325 for psychological testing, and \$2,175 for transcripts). Harvey noted a heavy trial calendar resulting from post-COVID catch-up and mandatory appeal transcripts for convicted indigent defendants. Approximately 54-60% of these expenses are state-reimbursable (reimbursements arriving next year).
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. Webb and Mr. Swad voted "No", motion passed 5-2).
- **00:49:45 Treasurer Additional Appropriation (Line 127)**
 - **Sponsor / Presenter:** Brad Hunt, Treasurer.
 - **Deliberation Summary:** Request for \$989 to cover salary overlap after a long-term head cashier passed away, requiring a new hire to be brought on early for training ahead of the September tax sale.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. Webb voted "No", motion passed 6-1).
- **01:03:23 EDIT Projects Additional Appropriation (Fund 1112)**
 - **Sponsor / Presenter:** County Commissioners / Council.
 - **Deliberation Summary:** Appropriation of Economic Development Income Tax (EDIT) funds for the second half of the year. Initial request was for \$1,500,000, but available ledger balances indicated the actual available balance was \$1,409,348.
 - **Action & Vote Disposition:** Amended to \$1,409,348. Approved as amended by roll call vote (Passed Unanimously).
- **01:11:18 Gasb Transfer / Additional Appropriation (Line 1212)**
 - **Sponsor / Presenter:** County Administration.
 - **Deliberation Summary:** Appropriation of \$2,158.84 for overtime.
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).

- **01:11:48 Public Defender Supplemental Fund Appropriation (Fund 1200)**
 - **Sponsor / Presenter:** Shelley Harvey, Public Defender.
 - **Deliberation Summary:** Appropriation of \$2,500 for office supplies (specifically reimbursing local law firms for making discovery copies to reduce wear on internal public defender copiers).
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
 - **01:16:00 Sheriff Operation Pullover / DUI Grant Appropriation (Fund 8109)**
 - **Sponsor / Presenter:** Captain Tony Johnson, Sheriff's Office.
 - **Deliberation Summary:** Appropriation of \$30,000 for federal grant-funded traffic enforcement (Operation Pullover, OWI, aggressive driving, seatbelt enforcement). Captain Johnson explained that moving to a double-time rate significantly increased deputy participation, exhausting the original \$30,000 line. The grant is 100% reimbursable by the Indiana Criminal Justice Institute (total award \$121,274.85).
 - **Action & Vote Disposition:** Approved by roll call vote (Passed Unanimously).
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5. Open Public Comment / Citizen Forum

- No members of the public spoke during the general public comment period. (Written materials regarding the Schaefer Leadership Academy were left by CS Hendershot, who departed prior to speaking).
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **HR / Wellness:** Flu shots are available today at the County Administration building, Justice Center, and Highway Department.
 - **Board Appointments:** Presiding Officer Jessica Piper reviewed upcoming board vacancies expiring in 2023/2024. Standardized application details (name, contact info, party affiliation, qualifications, and interest level) will be published, and interested citizens may address the council in December.
 - **Code of Conduct Committee:** A new committee was established to draft a County Council Code of conduct, consisting of Eugene K (Chair), Bill, and Dan.
 - **Solar Ordinance Hearing:** Councilman Bill noted a Plan Commission public hearing on November 2, 2023, at 6:00 PM at the Justice Center regarding comprehensive amendments to solar farm zoning provisions.
 - **Voter Turnout:** Encouraged early voting at the County building ahead of the November municipal elections.
 - **Veterans Civic Theater Promo:** Free tickets available for veterans for the Muncie Civic Theater's December production of *White Christmas*.

- **Adjournment:** Official adjournment disposition approved by roll call vote following a motion by Dan and second by Ryan [02:02:19](#).

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